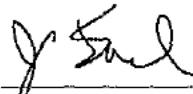


FIRST ENDORSEMENT

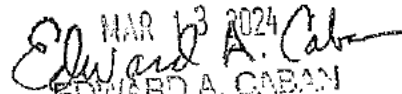
Executive Director, Civilian Complaint Review Board to Assistant Deputy Commissioner Nancy Slater, Department Advocate's Office, November 14, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28121 against Detective James Malpeso, Tax Registry No. 932948. The case was conferenced on October 24, 2023, before Assistant Deputy Commissioner of Trials Anne Stone, who approved a Command Discipline Schedule B with the negotiated penalty of a forfeiture of Eight (8) vacation days. Charges and Specifications are dismissed for plea purposes.



Executive Director

New York City Civilian Complaint Review Board

APPROVED

MAR 13 2024

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28121
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE DT1	SURNAME, MALPESO	FIRST JAMES	M.I. V	COMMAND NARCO BORO S.I.
SHIELD NO. 2939	TAX REGISTRY NO. 932948	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2003	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Detective James MALPESO, on or about October 12, 2021, at approximately 0805, while assigned to NBSIMAJOR and on duty, in the vicinity of § 87(2)(b) Richmond County engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that Dt. MALPESO entered § 87(2)(b) in Staten Island without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 8.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Detective James MALPESO, on or about October 12, 2021, at approximately 0805, while assigned to NBSIMAJOR and on duty, in the vicinity of § 87(2)(b) Richmond County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that Dt. MALPESO searched § 87(2)(b) in Staten Island without sufficient legal authority.	DISMISSED	

DC Brubaker
FIRST DEPUTY COMMISSIONER

12/14/23
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Calabrese
POLICE COMMISSIONER

3/13/24
DATE